CITY OF OPA-LOCKA
"The Great City"

Clerk's Action Summary Minutes
Special Commission Meeting
Monday, September 21, 2009
4:30 P.M.
City Commission Chambers
777 Sharazad Boulevard
Opa-locka, FL 33054

1. ROLL CALL:

The City Commission of the City of Opa-locka, Miami-Dade County, Florida, met in a special session on Monday, September 21, 2009 at 4:50 p.m. in the City Commission Chambers, 777 Sharazad Boulevard, Opa-locka, Florida. The following members of the City Commission were present: Commissioner Rose Tydus, Commissioner Timothy Holmes, Commissioner Dorothy Johnson and Mayor Joseph L. Kelley. Also in attendance were: Interim City Manager Bryan K. Finnie, City Attorney Burnadette Norris-Weeks and City Clerk Deborah S. Irby. Vice Mayor Myra L. Taylor was not in attendance.

2. INVOCATION:

The Invocation was delivered by Mayor Joseph L. Kelley.

3. PLEDGE OF ALLEGIANCE:

The Pledge of Allegiance was recited in unison.

4. ORDINANCE:

a. AN EMERGENCY ORDINANCE OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA; AMENDING CHAPTER 21, ARTICLE II, SECTION 21-77 OF THE CITY OF OPA-LOCKA CODE OF ORDINANCES, ENTITLED "SCHEDULE OF RATES GENERALLY" BY AMENDING PROVISIONS RELATED TO SEWER RATE INCREASES FOR FISCAL YEARS 2008-2009, 2009-2010, 2010-2011, 2011-2012 AND 2012-2013; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR CONFLICT AND REPEALER; PROVIDING FOR SEVERABILITY; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by T.H.*

The above ordinance was read by title by Attorney Weeks.

It was moved by Commissioner Johnson, seconded by Commissioner Holmes to pass the above ordinance.

At the request of Commissioner Tydus, Ezekiel Orji, Finance Director for the City of Opa-locka briefly explained the changes in the sewer rates as a part of the above ordinance and the size of meters mostly used by single family residential customers.

Commissioner Holmes questioned whether the FY 2009/2010 budget included the rates that were scheduled to go into effect on October 1, 2009 or whether it reflects the current rates. He referred to page 28 of the City of Opa-locka proposed operating budget for FY 2009/2010 which reflects under sewer services the projected amount for FY 2009 as $4,199.460.00, an estimated amount for 2010 as $8,222.000.00 for a difference of $4,022.540.00.

Mr. Orji explained that in the operating revenue, the rate that would have been used for this budget is the rate the Commission is voting on, therefore, it has been reflected as such. The Four Million Dollars Commissioner Holmes was looking at is not operating revenue; rather it is in the capital which are mainly grant money, loans, transfer from fund balance mainly used for capital projects.

Commissioner Holmes made it clear that he wants to make sure the new increase doesn't take effect on October 1, 2009 once the budget is adopted but the rates should remain the same as in 2008.

Mr. Orji agreed that the rates would remain the same.

Commissioner Holmes advised that he is still waiting for the rate schedule to be provided by the City Manager which would reflect the increase of rates based on usage.

Mr. Orji said the City Manager would come back to the Commission with that report.

Should the ordinance pass, Commissioner Holmes said the rates would remain the same as in 2008 and would not increase as previously scheduled.

Mayor Kelley added that adopting this ordinance basically means that the rates are being frozen and the citizens would not see an increase in the service charge for the years impacted due to the high number of citizen complaints regarding high water bills.

There being no further discussion, the motion passed by a 4-0 vote.

Commissioner Holmes	Yes
Commissioner Johnson	Yes
Vice Mayor Taylor	Not present
Commissioner Tydus	Yes
Mayor Kelley	Yes

5. ADJOURNMENT:

There being no further business to come before the City Commission, it was moved by Commissioner Johnson, seconded by Commissioner Holmes to adjourn the meeting.

MAYOR

ATTEST:

CITY CLERK